

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.**

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**3. M-CV-0095978 ROSEVILLE COBBLESTONE v. BRASWELL, REBECCA**

The motion for stay is dropped from calendar as no moving papers were filed with the court.

**4. M-CV-0097214 JENSON, ANDREW v. BAL, NORA**

Defendant's Motion to Set Aside Default and/or Default Judgment

Preliminary Matters

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

On June 22, 2026, defendant applied ex parte for the court to set aside the default and default judgment entered against her and stay execution of judgment.

The same day, the court granted defendant's ex parte application for stay of execution pending a hearing on a motion to set aside default and default judgment set for July 2, 2026. The court's order required defendant to serve plaintiff with the court's order and file a proof of service evidencing service on plaintiff on or before June 23, 2026. The court also indicated that the failure to serve plaintiff as ordered shall be basis alone to deny the application. Further, the court required defendant to file a motion to set aside default and/or default judgment on or before June 23, 2026.

Here, a review of the court's record reflects defendant has not filed a proof of service indicating she served plaintiff with the court's order nor a motion to set aside default and/or default judgment.

Even assuming arguendo the court deems defendant's ex parte application as a motion to set aside, defendant's motion is nonetheless denied because there is no proposed responsive pleading attached to the ex parte application or declarations filed in support thereof. (Code Civ. Proc., § 473, subd. (b).)

Accordingly, defendant's motion is denied without prejudice.

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